

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lianne May	Team: Squad #7	CCRB Case #: 202005450	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 07/18/2020 , Saturday, 07/18/2020 7:33 PM	Location of Incident: § 87(2)(b)	Precinct: 52	18 Mo. SOL 1/18/2022	EO SOL 5/4/2022	
Date/Time CV Reported Wed, 08/05/2020 7:33 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 08/05/2020 7:33 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. An officer			
3. LT Kevin Maloney	00000	904435	052 PCT
4. POF Genesis Perezvilomar	25976	965410	052 PCT
5. POF Ravena Seonarine	18566	964763	052 PCT
6. POM Shawn Deluca	21706	959590	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Roy Valentin	11808	961399	052 PCT
2. POM Daniel Rivera	05512	965840	052 PCT
3. POM Ryan Burbridge	12412	965961	052 PCT
4. SGT Joseph Pinero	501	942912	052 PCT
5. POM Mannix Teng	28619	939566	052 PCT
6. POM Felice Martino	07419	960892	052 PCT
7. POM Tyler Hanson	17921	966611	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Kevin Maloney	Abuse: At § 87(2)(b) Lt. Kevin Maloney refused to provide his name to § 87(2)(b)	§ 87(2)(b)
B. Officers	Force: At § 87(2)(b) Officers used physical force against § 87(2)(b)	§ 87(2)(b)
C.LT Kevin Maloney	Force: At § 87(2)(b) Lt. Kevin Maloney used a non-lethal restraining device on § 87(2)(b)	§ 87(2)(b)
D.POF Ravena Seonarine	Abuse: At § 87(2)(b) Police Officer Ravena Seonarine threatened § 87(2)(b) with the use of a taser.	§ 87(2)(b)
E.POM Shawn Deluca	Force: At § 87(2)(b) Police Officer Shawn Deluca used a non-lethal restraining device on § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
F. Officers	Force: At § 87(2)(b) officers restricted § 87(2)(b)'s breathing.	
G.POF Genesis Perezvilomar	Force: At § 87(2)(b) Police Officer Genesis Perez Vilomar used physical force against § 87(2)(b)	
H. An officer	Force: At § 87(2)(b) an officer used a taser on § 87(2)(b)	
I. Officers	Force: At § 87(2)(b) Officers used physical force against § 87(2)(b)	
J.LT Kevin Maloney	Abuse: At § 87(2)(b) Kevin Maloney forcibly removed § 87(2)(b) to the hospital.	
K.POF Genesis Perezvilomar	Abuse: At § 87(2)(b) § 87(2)(b) Police Officer Genesis Perez Vilomar threatened § 87(2)(b) with the use of force.	

Case Summary

On August 5, 2020, § 87(2)(b) filed this complaint online via the CCRB's website on behalf of herself and her § 87(2)(b) son, § 87(2)(b) (BR1). § 87(2)(b) and § 87(2)(b) resided at § 87(2)(b) in the Bronx. § 87(2)(b) and § 87(2)(b) were having an altercation in their apartment in which § 87(2)(b) threatened to hurt himself and § 87(2)(b) feared for her safety. § 87(2)(b) called 911 at 7:37PM and Lieutenant Kevin Maloney of the 52 Precinct responded. § 87(2)(b) alleged Lt. Maloney would not provide his name (**Allegation A: Abuse of Authority**, § 87(2)(g) Police Officer Genesis Perez-Vilomar, Police Officer Ravena Seonarine, Police Officer Ryan Burbridge, and Police Officer Shawn Deluca, all of the 52 Precinct, also responded. When § 87(2)(b) refused to cooperate and then resisted the officers, the officers restrained him (**Allegation B: Force**, § 87(2)(g) § 87(2)(b) alleged that Lt. Maloney Tasered § 87(2)(b) (**Allegation C: Force**, § 87(2)(g) PO Seonarine drew her Taser (**Allegation D: Abuse of Authority**, § 87(2)(g) PO Deluca Tasered § 87(2)(b) (**Allegation E: Force**, § 87(2)(g) § 87(2)(b) alleged that officers restricted § 87(2)(b)'s breathing (**Allegation F: Force**, § 87(2)(g) and that PO Perez-Vilomar used force against her (**Allegation G: Force**, § 87(2)(g) § 87(2)(b) then alleged that officers took § 87(2)(b) into the hallway where an officer Tasered him (**Allegation H: Force**, § 87(2)(g) and officers dragged § 87(2)(b) down the stairs (**Allegation I: Force**, § 87(2)(g) Lt. Maloney then removed § 87(2)(b) to the hospital (**Allegation J: Abuse of Authority**, § 87(2)(g) At the hospital, a doctor told § 87(2)(b) that PO Perez-Vilomar allegedly threatened § 87(2)(b) with a Taser (**Allegation K: Abuse of Authority**, § 87(2)(g) § 87(2)(g)

The investigation received 12 body-worn camera (BWC) videos regarding this incident (BR2).

Findings and Recommendations

Allegation A- Abuse of Authority: At § 87(2)(b) Lt. Kevin Maloney refused to provide his name to § 87(2)(b)

On July 18, 2020, § 87(2)(b) and § 87(2)(b) were in their residence when they got into an argument that escalated. § 87(2)(b) threatened to hurt himself, stating that if § 87(2)(b) called the police, he would stab himself in the neck. § 87(2)(b) concerned for § 87(2)(b)'s wellbeing, called 911. Lt. Maloney responded to the call and § 87(2)(b) opened the door. She spoke with him outside in the hallway and told Lt. Maloney that § 87(2)(b) was inside. § 87(2)(b) alleged that she repeatedly asked Lt. Maloney for his name, but he did not provide it. § 87(2)(b) explained that she let Lt. Maloney inside the apartment (BR3).

In a 911 call recording from 7:37PM (BR4), § 87(2)(b) states to EMS that § 87(2)(b) threatened to hurt himself by sticking a knife in his neck. § 87(2)(b) is concerned for her safety. EMS states that an ambulance will be there.

In Lt. Maloney's BWC (BR5) from 3:30-4:20, § 87(2)(b) asks Lt. Maloney who he is, and he tells her that his name is Lt. Maloney. She states that she called the ambulance because § 87(2)(b) is threatening to put a knife to his head. § 87(2)(b) is not on the lease of § 87(2)(b)'s apartment and she wants § 87(2)(b) to leave.

§ 87(2)(g)

Allegation B- Force: At § 87(2)(b) officers used physical force against § 87(2)(b)

Allegation C- Force: At § 87(2)(b) Lt. Kevin Maloney used a non-lethal restraining device on § 87(2)(b)

Allegation D- Abuse of Authority: At § 87(2)(b) Police Officer Ravena Seonarine threatened § 87(2)(b) with the use of a Taser.

Allegation E-Force: At § 87(2)(b) Police Officer Shawn Deluca used a non-lethal restraining device on § 87(2)(b)

Allegation F Force: At § 87(2)(b) officers restricted § 87(2)(b)s breathing.

Allegation G- Force: At § 87(2)(b) Police Officer Genesis Perez-Vilomar used physical force against § 87(2)(b)

§ 87(2)(b) explained that Lt. Maloney approached § 87(2)(b) and began speaking with § 87(2)(b) very calmly while asking him questions. § 87(2)(b) repeatedly used profanity and stated that he was not going to go with the police or to the hospital. § 87(2)(b) refused to cooperate and escalated the situation further. Lt. Maloney then grabbed § 87(2)(b) and began struggling with him on the bed. § 87(2)(b) alleged that officers then knelt on § 87(2)(b)s back, while he was still face-down on the ground, with her left knee. § 87(2)(b) called out to § 87(2)(b) “Ma, Ma, Ma, they’re on me, get them off of me, I cannot breathe.” § 87(2)(b) believed that the officers restricted § 87(2)(b)s breathing. § 87(2)(b) then alleged that Lt. Maloney took out his Taser and deployed it on § 87(2)(b). To protect her son, § 87(2)(b) “got in” to the mix of officers and tried to move PO Seonarine’s knee off § 87(2)(b)s back by pushing her. She alleged that PO Perez-Vilomar then grabbed § 87(2)(b) hard by her left hand or arm and pushed her backwards, causing her to fall onto the futon sofa nearby (BR3).

Lt. Maloney’s BWC from 04:20-09:10 (BR5) corroborates that Lt. Maloney tries to deescalate the situation by calmly asking § 87(2)(b) questions. § 87(2)(b) repeatedly states to Lt. Maloney, PO Deluca, PO Seonarine, PO Perez-Vilomar, and PO Burbridge that he will not go with them to any EMS or hospital. Lt. Maloney then goes behind § 87(2)(b) with other officers in front of § 87(2)(b).

In PO Seonarine’s BWC (BR6) from 2:35- 4:15, Lt. Maloney, PO Deluca, PO Seonarine, PO Perez-Vilomar, and PO Burbridge all grab hold of § 87(2)(b) to apply handcuffs. He begins to physically resist by spreading his arms out, moving from the bed, and pulling away from the officers. He repeatedly states, “I’m not fucking going to any EMS.” Officers tell him to stop resisting. § 87(2)(b) stands next to officers and tries to reach out to § 87(2)(b). At 2:50 in the BWC and 7:48PM, PO Deluca and PO Seonarine draw their Tasers. PO Seonarine puts her Taser back in her belt. PO Deluca then deploys one cycle of the Taser. § 87(2)(b) stands behind and touches the officers. PO Seonarine tells § 87(2)(b) to go outside and PO Perez-Vilomar goes toward § 87(2)(b) and briefly puts one hand on her back without grabbing her. PO Seonarine tells her again to get outside and she does not comply. Lt. Maloney tells the EMS personnel in the room that they are coming out with § 87(2)(b). At no point are officers taking any action to restrict § 87(2)(b)s breathing and he does not say so on BWC.

PO Deluca’s memo book (BR7) and the Taser Data Sheet (BR8) states that PO Deluca deployed his Taser for five seconds (one sequence) at 7:50PM.

The CCRB investigator could not reach § 87(2)(b) for a statement. The investigator called § 87(2)(b) from October 29, 2020-December 1, 2020 a total of nine times, five times to a number § 87(2)(b) provided and four times to a number listed from a Lexis Nexis search. Three emails were sent to his email with the last email bouncing back. § 87(2)(b) never responded to any contact attempts. § 87(2)(b) is not incarcerated.

The NYPD Patrol Guide section 221-01 entitled “Force Guidelines” explains that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life. In all circumstances, an application of force must be reasonable under the circumstances. The Patrol Guide goes on to state that the reasonableness of the use of force is based upon the totality of the circumstances known by the MOS at the time of the use of force. When appropriate and consistent with personal safety, members of service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force (BR9).

Patrol Guide Procedure 221-08 defines active aggression as a threat or overt act of an assault coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. CEWs should only be used against persons who are exhibiting active aggression or to prevent individuals from physically other person(s) present (BR10).

§ 87(2)(g)

§ 87(2)(b) alleged that Lt. Maloney deployed a Taser against § 87(2)(b). No BWC or documentation showed that anyone other than PO Deluca deployed a Taser. § 87(2)(g)

On BWC, PO Seonarine and PO Deluca drew their Tasers and PO Deluca deployed his Taser. § 87(2)(g)

§ 87(2)(b) alleged that officers restricted § 87(2)(b)'s breathing. § 87(2)(g)

§ 87(2)(b) also alleged that PO Perez-Vilomar grabbed § 87(2)(b)'s arm to push her out of the way. § 87(2)(g)

Allegation H- Force: At § 87(2)(b), an officer used a Taser on § 87(2)(b).

Allegation I- Force: At § 87(2)(b), officers used physical force against § 87(2)(b).

§ 87(2)(b) explained that the officers brought § 87(2)(b) into the hallway outside of § 87(2)(b) barefooted. § 87(2)(b) alleged that an officer then Tasered § 87(2)(b) again on the left side of his body. § 87(2)(b) alleged that all the officers then dragged § 87(2)(b) down the stairs from the second floor to the lobby, with only § 87(2)(b)'s feet hitting each step on the way down. The officers lodged § 87(2)(b) in an ambulance at the street (BR3).

In PO Seonarine's BWC from 04:15-05:21 (BR6), PO Seonarine walks behind PO Burbidge and PO Perez-Vilomar who each hold onto § 87(2)(b)'s arm. At no point does any officer deploy a Taser in the hallway or any time after PO Deluca deployed his Taser. § 87(2)(b) is walking with the officer down the stairs and is not dragged down the stairs as alleged.

§ 87(2)(g)

Allegation J- Abuse of Authority: At § 87(2)(b), Lt Maloney forcibly removed § 87(2)(b) to the hospital.

Allegation K-Abuse of Authority: At § 87(2)(b), Police Officer Genesis Perez Vilomar threatened § 87(2)(b) with the use of force.

The ambulance, which § 87(2)(b) did not see, brought § 87(2)(b) to the ER's "psych unit" at § 87(2)(b). § 87(2)(b) then went to the hospital. § 87(2)(b)'s doctor told § 87(2)(b) that PO Perez-Vilomar told § 87(2)(b) "I see you like flipping cops and I

see you can handle the Taser” and “Well guess what? I’ll Tase you if I have to,” “Test me and I will Tase you,” or “Test me because then I will use my Taser.” § 87(2)(b) did not hear this conversation firsthand (BR3).

Lt. Maloney retired as of June 3, 2021 and could not be interviewed for this investigation (BR11).

According to Patrol Guide Procedure 216-01, which outlines the general procedure when dealing with AIDED cases in place at the time, AIDED Cases are defined as “any occurrence...which requires that a person, other than a prisoner, receive medical aid or assistance” including but not limited to, individuals who are mentally ill. It dictates “uniformed members of the service concerned shall cooperate with ambulance/hospital personnel in every reasonable manner” (BR12).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR13).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR14).
- Police Officer Shawn Deluca has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject (BR15).
- Police Officer Ravena Seonarine has been a member-of-service for three years and this is the first CCRB complaint to which she has been a subject (BR16).
- Police Officer Genesis Perez-Vilomar has been a member of service for three and has been a subject in two CCRB complaints and two allegations which are still open. § 87(2)(g)

- Lieutenant Kevin Maloney is retired and was a member of service for 27 years and had been named a subject in 22 other CCRB complaints and 55 other allegations, of which eight have been substantiated. § 87(2)(g)

- CCRB case #9601814 involved two substantiated allegations of discourteous language and an unsubstantiated allegation of threat of arrest. The Board recommended Command Discipline. There is no NYPD penalty listed in the CCRB’s records.
- CCRB case #9602913 involved substantiated allegations of physical force and discourteous language. The Board recommended Command Discipline. There is no NYPD penalty listed in the CCRB’s records.
- CCRB case #200402794 involved substantiated allegations of a frisk and strip-search, exonerated allegations of a frisk, question and/or stop, and an unsubstantiated allegation of strip-search. The Board recommended Charges. The NYPD imposed Instructions.
- CCRB case #200411152 involved substantiated allegations of physical force and hitting an individual against an inanimate object. The Board recommended Charges. The NYPD took no disciplinary action.

Mediation, Civil and Criminal Histories

- As of October 6, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR19).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 7

Investigator: <u>Lianne May</u>	<u>Investigator Lianne May</u>	<u>October 20, 2021</u>
Signature	Print Title & Name	Date

	Manager Vanessa Rosen	October 21, 2021
Squad Leader: _____	_____	_____
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
Signature	Print Title & Name	Date